

## 24STCV06372 24STCV06372

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-06-26

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Case Number: 24STCV06372 Hearing Date: June 26, 2026 Dept: 735

Maurice, et al. v. Town and Country Moving  
and Storage, Inc., et al.

Plaintiffs' Motion for Leave to File a First  
Amended Complaint

### BACKGROUND

On March 14, 2024,  
Plaintiffs Peter Maurice and Curtis Dikes filed a form complaint against  
Defendant Town and Country Moving and Storage, Inc., asserting causes of action  
for negligence and breach of contract. On November 18, 2025,  
Plaintiffs filed a DOE Amendment substituting Leigh Edward Mace as a Doe  
Defendant in this action.

### DISCUSSION

Plaintiffs move for leave to file a first  
amended complaint to add causes of action for fraud, negligent  
misrepresentation, and intentional infliction of emotional distress. Plaintiffs  
assert that discovery has revealed evidence concerning Defendants' lack of  
inventory and tracking systems, improper storage conditions, mishandling and  
alteration of Plaintiffs' valuable property, and representations made regarding  
Defendants' qualifications and capabilities in handling luxury residential  
moves and specialty items. Plaintiffs comply with CRC Rule 3.1324(b).

In opposition, Defendants argue that  
Plaintiffs have unreasonably delayed in seeking amendment and argue that the

proposed amendment significantly alters the legal theories and available remedies in the action. Defendants also assert that the claims do not relate back to the original complaint and are thus time barred.

The Court will allow amendment. Delay alone is not sufficient grounds for denial. The proposed additions arise from the same events and transactions as those in the original complaint. Trial has been continued to February 2027 and thus Defendants will not be prejudiced by amendment. Defendant's arguments regarding the statute of limitations cannot be adjudicated on this motion and must be addressed via demurrer, summary judgment or trial. The Court grants Plaintiffs' motion.

#### CONCLUSION

The Court grants Plaintiffs' motion for leave to file a first amended complaint.

Plaintiffs to give notice.